FREE LEGAL GUIDE #8

How to Choose the Right Criminal Lawyer in Pune

10 questions to ask, red flags to avoid,
and what good legal representation looks like

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How to Choose the Right Criminal Lawyer in Pune

Choosing the wrong criminal lawyer can cost you your freedom, your reputation, and years of your life. Criminal defence is a specialist field — not all lawyers who call themselves criminal lawyers have the skills, court experience, and legal knowledge to handle serious criminal matters. This guide gives you 10 questions to ask before engaging any criminal lawyer in Pune.

> The best time to find a criminal lawyer is before you need one urgently. Decisions made under panic and time pressure are rarely the best decisions. Read this guide, know what to look for, and save the right numbers.

10 QUESTIONS TO ASK BEFORE HIRING A CRIMINAL LAWYER

1. Do you appear at Bombay High Court regularly?

Many criminal matters — anticipatory bail, bail applications in serious cases, FIR quashing, revision petitions — must be filed at the Bombay High Court. A lawyer who only practises in district courts may not have the necessary High Court experience. Ask specifically how many Bombay High Court matters they have handled in the past year.

2. Have you handled cases involving the specific offence I am charged with?

Criminal law is divided into sub-specialisms: NDPS, cybercrime, matrimonial offences, economic offences, murder/serious crime, POCSO. Each requires different procedural knowledge and strategy. Ask for specific examples — not generic statements about 'criminal experience'.

3. Can you show me verifiable case outcomes?

Any lawyer can claim success. Ask them to show you orders from Indian Kanoon or share case numbers you can verify. Adv. Akash Chikate, for example, has 27+ Bombay High Court orders publicly available on indiankanoon.org/search/?formInput=Akash+Chikate.

4. Who will actually handle my case — you, or a junior?

In large law firms, client matters are often handled by juniors while the senior lawyer's name is on the letterhead. Ask whether the lawyer you are meeting will personally argue your matter or whether it will be delegated. For serious charges, personal handling is essential.

5. What is your honest assessment of my case?

A good criminal lawyer will give you an honest, realistic assessment — not false reassurance. Be wary of lawyers who immediately promise guaranteed outcomes, tell you 'don't worry at all', or

quote dramatically high fees before even hearing the facts. Professional ethics prohibit guaranteed outcomes under Bar Council rules.

6. What is your fee structure and what does it cover?

Criminal lawyer fees vary widely. Some charge per hearing, others charge a fixed retainer, others charge separately for bail and trial. Understand what you are paying for. Ask: Does the fee cover Bombay High Court appearances? FSL report review? Section 164 statement hearings? Get a clear understanding in writing.

7. How do you communicate case updates?

You should expect regular updates on hearing dates, orders passed, and next steps. Ask how the lawyer communicates — WhatsApp, phone call, email? A lawyer who is impossible to reach after the retainer is paid is a red flag.

8. Do you have experience with the relevant investigating agency or court?

In Pune, matters may be investigated by local police, the Economic Offences Wing (EOW), the Cyber Crime Cell, or the NDPS Squad. Experience dealing with the specific agency matters — as does familiarity with the judges in the relevant court.

9. What is your approach to bail — do you start with Sessions Court or directly at High Court?

The choice of court for bail determines strategy and timeline. An experienced lawyer will explain why they are recommending a particular court — not just file wherever is convenient. In urgent matters, interim bail from the High Court may be faster than waiting for a Sessions Court date.

10. Are you on the right side of the BCI compliance line?

Bar Council of India rules prohibit advocates from advertising, making performance guarantees, or describing themselves with superlatives. A lawyer who promises guaranteed bail, calls themselves 'best in Pune', or claims a specific win percentage is violating professional ethics — and is likely telling you what you want to hear, not the truth.

RED FLAGS TO WATCH OUT FOR

- ✗ Guarantees a specific outcome ('I will definitely get you bail today')
- ✗ Quotes a very high fee before hearing a single fact about your case
- ✗ Claims to 'know' judges or police officers personally
- ✗ Refuses to give you case hearing dates or copies of court orders
- ✗ Is vague about which court they practise in
- ✗ Delegates everything to a junior without disclosure

✗ Does not have a verifiable professional presence or Bar Council registration

✗ Pressures you to decide immediately without thinking

WHAT GOOD CRIMINAL LEGAL REPRESENTATION LOOKS LIKE

✔ Clear explanation of charges, legal options, and realistic expectations

✔ Personal appearance at all critical hearings — bail, charge framing, examination of witnesses

✔ Proactive communication — updates without you having to chase

✔ Thorough preparation — reading the FIR, chargesheet, FSL reports, and evidence in full

✔ Experience at the relevant court level (Magistrate, Sessions, Bombay High Court)

✔ Knowledge of the specific law involved — BNS, BNSS, NDPS, POCSO, IT Act as applicable

✔ Professional conduct — no promises, clear fees, honest advice

Advocate Akash Chikate & Associates practises exclusively in criminal and family law at the Bombay High Court and District Courts in Pune. With 27+ publicly available Bombay High Court orders, an LLM in Science & Technology Laws, and a Diploma in Cyber Laws, the firm brings specialist expertise to serious criminal matters. WhatsApp +91 8698400302 for a consultation.

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This guide is for general informational purposes only and does not constitute legal advice. Outcomes in legal matters vary based on facts and circumstances. Consult a qualified advocate for advice specific to your matter. Advocate Akash Chikate — Bar Council of India Licensed Advocate.